
INTRODUCTION

Beginning November 11, 2016, and ending with requests received prior to October 1, 2019, a special population in Genesee County may be eligible for Flint Emergency Declaration Child Development and Care (CDC) assistance for 40 hours every two weeks. Income eligibility and need requirements are waived for this group.

Follow standard policy from all applicable Bridges Policy Manuals for CDC, including Bridges Administrative Manuals (BAM) and Bridges Eligibility Manuals (BEM), with the following exceptions related to Flint Emergency Declaration CDC.

Date Restrictions at Application and Review

The following date restrictions apply to Flint Emergency Declaration CDC eligibility:

- A child found eligible for Flint Emergency Declaration CDC based on an application or review document received prior to October 1, 2019, remains eligible for Flint Emergency Declaration CDC the remainder of the 12-month continuous eligibility period.
- A child for whom CDC is requested on an application or review document received on or after October 1, 2019, is not eligible for Flint Emergency Declaration CDC. Eligibility for CDC should be determined based on standard policy.

Special Population

This special population includes each child who satisfies all of the following criteria:

- CDC is requested for the child by an application or review document that is received prior to October 1, 2019.
- The child is under age four at the time of application or redetermination.
- The child (or the child's mother while pregnant) consumed water from the Flint water system while living, working or attending child care or other regular activity at an address that

was serviced by the Flint water system at any time during the crisis [April 25, 2014, through August 14, 2016]

- **The child** currently resides in the Flint water system Affected Area (defined in this item).

Exception: See the Alternative Criteria in this item for clients who reside outside of the Affected Area.

Policy Exceptions

Request Flint Emergency Declaration CDC policy exceptions in case specific situations not covered by published policy. In addition to CDC policy exceptions defined in BEM 100, Flint Emergency Declaration CDC policy exception decisions shall be granted when the parent/substitute parent (P/SP) valid CDC need exceeds 40 hours every two weeks and/or meets the Alternative Criteria defined in this item.

The Department of Lifelong Education, Advancement, and Potential, Office of Great Start, Child Development and Care, issues Flint Emergency Declaration CDC policy exception decisions on form DHS-1785, Policy Decision. Policy decisions issued on the DHS-1785, is official policy, but only for the case specified on the form.

Need Exceeds 40 Hours

If the P/SP indicates a need for more than 40 hours of care every two weeks, inform the P/SP that upon receipt of supporting documentation a policy exception will be requested. If the P/SP can immediately produce supporting documentation (for example, check stub(s), work or school schedule, etc.), request the policy exception before certifying the eligibility results. If the P/SP is unable to provide supporting documentation immediately, certify the 40 hours of eligibility, and request a Flint Emergency Declaration CDC policy exception upon receipt of supporting documentation.

Alternative Criteria

Alternative Criteria for the special population exists for a child who does not currently reside in the Affected Area, but will experience hardship if the child does not have access to the Flint Emergency Declaration CDC benefit.

Request a policy exception to review potential approval for Flint Emergency Declaration CDC benefits when all of the following are true:

- CDC is requested for the child by an application or review document that is received prior to October 1, 2019. The child is under age four at the time of application or redetermination.
- The child (or the child's mother while pregnant) consumed water from the Flint water system while living, working or attending child care or other regular activity at an address that was serviced by the Flint water system at any time during the crisis [April 25, 2014, through August 14, 2016].
- The child is still attending a regular activity (school, child care, etc.) in the Affected Area identified in this item.

A policy exception is required for all children satisfying the Alternative Criteria, regardless of the number of hours requested.

Note: When an approved policy decision is received, assistance from the BRC is required to authorized Flint Emergency Declaration CDC hours for a child currently residing outside the Affected Area.

Exception Requests

Any staff member may initiate a request for a Flint Emergency Declaration CDC policy exception, but it must be in writing and go through regular administrative channels. Send requests to Policy-CDC@michigan.gov. Upload confidential information to the electronic case file (ECF) and include remarks in the exception request identifying which documents support the greater need hours. Do not send confidential information by email.

Flint Emergency Declaration CDC policy exception requests must include:

- Case name (group member needing exception).
- Case number.
- Name and phone number of local office contact person.
- A detailed reason for the exception request.
- Copies of all supporting documentation (if the information is confidential or is already in the ECF, note in the email).

If further information is necessary, a response will be sent by email with the specific request. If complete information is received, the decision will be sent by email. Document the decision in Bridges case comments and upload the DHS-1785 to the ECF.

If more than 40 hours of need every two weeks is approved through a policy exception, enter all need hours in a single time block under the Flint Emergency Declaration CDC need reason, regardless of the need(s) for which the exception was approved.

Example: The P/SP requests Flint Emergency Declaration CDC, indicates a total need greater than 40 hours for a valid BEM 703 CDC need reason, and provides supporting documentation of an activity lasting 35 hours every two weeks. Upon receiving a completed policy exception approval, enter 45 hours under the Flint Emergency Declaration need reason, which would result in 60 authorized hours.

Note: If a client only requests Flint Emergency Declaration CDC and has no other need, authorize 40 hours. The 40 hours of Flint Emergency Declaration CDC includes all needs considered for a parent (for example, travel time) and no calculation is done.

RIGHTS AND RESPONSIBILITIES

Clients are not required to report a change in income when income exceeds the CDC Income Eligibility Scale in RFT 270.

APPLICATION FILING, REGISTRATION AND PROCESSING

A client must submit the MDE-4583-Simplified Application, or the MI Bridges application before October 1, 2019, in order to request Flint Emergency Declaration CDC assistance for a child under four years of age in the Flint Emergency Declaration Affected Area.

Exception: A P/SP with an open CDC case may submit the Child Development and Care (CDC) Flint Emergency Declaration Certification form before October 1, 2019, rather than submitting a new application. This form is an official request to have currently authorized children, who are potentially eligible for Flint Emergency Declaration CDC, changed to this category. If currently authorized

hours are more than 40 hours every two weeks, follow the Policy Exceptions instruction in this policy item.

If the P/SP submits information about children who are not under four years old and indicates a desire for CDC for those children on the MDE-4583-Simplified application before October 1, 2019, utilize the application as a filing form and provide or send a MDHHS-1171, Application for Assistance or MDE-4583, Child Development and Care (CDC) Application. Follow normal application filing and registration procedures.

If the P/SP has an open CDC EDG, that P/SP may submit one of the acceptable applications for the applicable child(ren) before October 1, 2019. In these instances, the child(ren)'s only need reason should be listed as Flint Emergency Declaration. If this action causes the authorized hours to be reduced, review Hours Reduced in 12-month Continuous Eligibility in this item.

Interview

An interview is required for all new CDC requests. Make an initial attempt to interview the applicant. If contact fails, schedule an interview and send the applicant notification by mail. If the interview is missed, notify the applicant by mail of the need to respond and complete an interview by the 30th calendar day of the standard of promptness.

Note: Clients who have ongoing CDC cases are not required to participate in an interview when they apply for Flint Declaration CDC.

Application Location

An application must be received and processed in Genesee County only.

Standard of Promptness

For Flint Emergency Declaration CDC, it is recommended that the Eligibility Specialist (ES) certify program approval of the application within 10 days. Allow the client every opportunity to return verifications and meet the interview requirement. Do not deny eligibility until the 30th day of the standard of promptness.

CASE ACTIONS

Clients are not required to report a change in income when income exceeds the CDC Income Eligibility Scale in RFT 270.

When adding a member to the group, the waiver of income and need still applies to those children under four years old who are receiving Flint Emergency Declaration CDC.

Valid CDC EDG Closure Reasons for Flint Emergency Declaration CDC include:

- Client requests closure.
- Incarceration.
- Loss of Michigan residency.
- Only child leaves the home.
- Assets exceed one million dollars.

When a child who is eligible for Flint Emergency Declaration CDC turns four years old during the 12-month continuous eligibility period or the family changes the current address to one outside the Affected Area, Flint Emergency Declaration CDC will end at redetermination, unless all eligibility criteria are met under the Alternative Criteria. Send all necessary required information to the P/SP to request CDC eligibility under BEM 703 criteria.

CDC GROUP COMPOSITION

Because the income and need of the group are waived for Flint Emergency Declaration CDC, the only required group member(s) include the child(ren) receiving Flint Emergency Declaration CDC. When additional child(ren) are applied for outside of the Flint Emergency Declaration CDC the CDC Group Composition includes all members listed in BEM 205 and does not exclude those children receiving the Flint Emergency Declaration CDC.

Accept all provided information from any acceptable application for Flint Emergency Declaration CDC. If historical information is available from previous applications or in Bridges, confirm the historical information if possible. Do not request more than the required information.

AGE

The Flint Emergency Declaration CDC need reason is available for children from birth to under age four.

CHILD SUPPORT

Do not deny Flint Emergency Declaration CDC eligibility for a child solely because the P/SP is in non-cooperation with the Office of Child Support.

INCOME

Income is not a reporting requirement for Flint Emergency Declaration CDC need reasons. If income is or has been reported for any reason, waive the income eligibility. Do not deny Flint Emergency Declaration CDC eligibility for a child solely because the group's income exceeds the CDC Income Eligibility Scale in RFT 270.

CDC VERIFICATIONS

Do not request verifications of need.

Do not request verification of income.

**CDC PROGRAM
REQUIREMENTS**

Eligibility for 40 hours of Flint Emergency Declaration CDC is not dependent on any P/SP being unavailable due to a valid need reason.

When a P/SP applies prior to October 1, 2019, for the Flint Emergency Declaration CDC and certifies that a child under four years old has been affected by the Flint water system, meets the definition referenced in Special Population and is determined eligible, authorize 40 hours with a need reason of Flint Emergency Declaration.

Once eligibility has been determined, the child(ren) will remain eligible for the entire 12-month certification period with few exceptions; see Closure Reasons in this item.

Affected Area

The following zip codes comprise the Flint Emergency Declaration Affected Area:

- 48502.
- 48503.
- 48504.
- 48505.
- 48506.
- 48507.
- 48509.
- 48519.
- 48529.
- 48532.

**Multiple
Eligibility/Need
Reasons**

The need reason for all children in which the P/SP has made a request for Flint Emergency Declaration CDC prior to October 1, 2019, has certified that the child was affected according to the requirements listed above, and the family currently resides in the Affected Area should be marked as Flint Emergency Declaration. For those individuals who provide supporting documentation for more hours of need, do not enter additional need reasons. Instead, submit a Flint Emergency Declaration CDC Policy Request to Policy-CDC@michigan.gov with the appropriate information pertaining to additional need hours.

**Family
Contribution**

Because there is no income determination for this eligibility group, waive the Family Contribution (FC) listed in RFT 270 (listed as \$0). This waiver is due to high lead levels, confirmed by each applicant's self-attestation.

CDC NEED CALCULATION

Hours Reduced in 12-month Continuous Eligibility

When a child has active CDC, authorized hours cannot be lowered during 12-month continuous eligibility. Request a Flint Emergency Declaration CDC Policy Exception for any child whose hours would be reduced by changing to the Flint Emergency Declaration CDC need reason during 12-month continuous eligibility. Do not request new supporting documentation.

Need in Two- Parent Household

When requesting a policy exception for additional need hours, consider need calculation for a two-parent household according to BEM 710. If the parents indicate there is an overlap in need hours and the parent with the fewest hours has a need greater than 40 hours, submit a Flint Emergency Declaration CDC policy exception as instructed in this policy item.

Documenting the Need Determination

When a Flint Emergency Declaration CDC policy exception is approved, upload the DHS-1785, Policy Decision, and document the approval in Bridges including the following information:

- Calculations used to arrive at the need determination.
- The source of the information used in the need determination.
- The date of the policy exception approval.

CONTACT

Direct questions or clarification requests to the policy mailbox at Policy-CDC@michigan.gov.

REDETERMINATION

At redetermination follow standard policy found in BAM 210, (unless otherwise stated in this policy item), including the

requirement that a client submit a MDHHS-1010, Redetermination, or other review document.

A child for whom CDC is requested on a review document received on or after October 1, 2019, is not eligible for Flint Emergency Declaration CDC. Eligibility for CDC should be determined based on standard policy.

At redetermination if the Flint Emergency Declaration CDC eligible child fulfills the following three conditions, the child will remain eligible for 40 hours of Flint Emergency Declaration CDC until next redetermination date:

1. The review document was received prior to October 1, 2019.
2. The child is under age four.
3. The child resides in the Affected Area during redetermination.

Policy Exception Requests at Redetermination

At redetermination, if more than 40 hours of CDC are requested:

- A new policy decision **is not** required if the current P/SP(s) have an approved policy decision for the same or a greater number of hours. Document the hour calculation.
- A new policy decision **is** required if the current P/SP(s) do not have an approved policy decision, or if the hours requested are greater than previously approved.

A new policy decision **is** required for a child who qualifies under the Alternative Criteria, regardless of the number of hours requested or previously approved.

Follow the policy exception guidance in this policy item to request a new policy decision.

LEGAL BASE

The Child Care and Development Block Grant (CCDBG) Act (42 USC § 9858 et seq.), as amended by the CCDBG Act of 2014 (Pub. L. 113-186).
45 CFR Parts 98 and 99.
Social Security Act, as amended 2016.